

23CMCV00861 23CMCV00861

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-09-17

Motion: PLAINTIFF CITY OF COMPTON'S MOTION FOR SUMMARY ADJUDICATION AGAINST DEFENDANT VRPO LLC
DATE: September 17, 2026 TIME: 8:30 A.M.

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Case Number: 23CMCV00861 Hearing Date: September 17, 2026 Dept: E

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL
DISTRICT

CITY OF COMPTON, A California municipal
corporation,

Plaintiff,

vs.

ERNESTO DEVERA, an
individual; THE GAS STATION, an unknown business entity; PATRICK O'LOUGHLIN,
an individual; JOHN WEXLER, an individual; VRPO LLC, a California limited
liability company, and DOES 2, 5 Through 100, inclusive,

Defendants.

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CASE NO: 23CMCV00861

[TENTATIVE] ORDER RE: PLAINTIFF CITY OF
COMPTON'S MOTION FOR SUMMARY ADJUDICATION AGAINST DEFENDANT VRPO LLC

DATE: September 17, 2026

TIME: 8:30 A.M.

DEPT.: E

Moving Party: Plaintiff City of Compton

Responding Party: Defendant VRPO, LLC

Notice: Ok

Tentative

Ruling: Plaintiff's

Motion for Summary Adjudication is GRANTED IN PART.

I.

BACKGROUND

This

is an action for abatement, injunction, equitable relief, and civil penalties for the alleged operation of an unlicensed marijuana business at the real property located at 1228 East Compton Blvd., Compton, CA 90221 (the "Property"). Plaintiff City of Compton (the "City") alleges that Defendant The Gas Station is an unlicensed marijuana dispensary operating out of the Property, and that Defendant Ernesto Devera ("Devera") owns the Property where the unlicensed marijuana dispensary operates.

On June 9, 2023, the City

initiated this action by filing its original Complaint against Defendants The Gas Station, Devera, and Does 1 through 100, inclusive, alleging causes of action for: (1) Narcotics Abatement (Health and Safety Code Sections 11570 et seq.); (2) Public Nuisance (Civil Code Sections 3479 et seq.); (3) Violation of Compton Municipal Code (CMC Chapters 9-24.3); (4) Violation of Compton Municipal Code (CMC Chapters 30-33); (5) Violation of Unfair Competition Law (Business and Professions Code Sections 17200 et seq.); and (6) Violation of MAUCRSA (Business and Professions Code Section 26000 et seq.).

On

September 19, 2025, the City amended its Complaint to substitute Defendants John Wexler ("Wexler") as Doe 3 and VRPO LLC ("VRPO") as Doe 4. (See Amendments to Complaint (Fictitious/Incorrect Name), both filed 9/19/25.)

On

October 14, 2025, the Court Granted Plaintiff's Motion for Leave to Amend Complaint.

On

October 23, 2025, and pursuant to the Court's October 14, 2025 order granting leave to amend its Complaint (see Minute Order, 10/14/25), Plaintiff filed the operative First Amended Complaint (the "FAC") against Defendants Devera, The Gas Station, Patrick O'Loughlin ("O'Loughlin"), Wexler and VRPO alleging causes of action for: (1) Narcotics Abatement (Health and Safety Code Section 11570 et seq.); (2) Public Nuisance (Civil Code Sections 3479 et seq.); (3) Violation of Compton Municipal Code (CMC Chapters 9-24.3); (4) Violation of Compton Municipal Code (CMC Chapters 30-33); (5) Violation of Unfair Competition Law (Business and Professions Code Sections 17200 et seq.); and (6) Violation of MAUCRSA (Business and

Professions Code Section 26000 et seq.).

On

June 23, 2026, the City filed the instant Motion for Summary Adjudication against VRPO (the “MSA”).

On

August 31, 2026, VRPO filed its Opposition.[1]

On September 4, 2026, the City filed its Reply.

II.

ANALYSIS

A.

Legal

Standard

The purpose of a motion for summary judgment or summary adjudication “is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.” (Aguilar v. Atl. Richfield Co. (2001) 25 Cal.4th 826, 843.) “Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

“On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment or summary adjudication “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action ... cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc. § 437c(p)(2).) “Once the defendant ... has met that burden, the burden shifts to the plaintiff ... to

show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Ibid.) “If the plaintiff cannot do so, summary judgment should be granted.” (Avivi v. Centro Medico Urgente Med. Ctr. (2008) 159 Cal.App.4th 463, 467 (“Avivi”).)

“When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (Avivi, supra, 159 Cal.App.4th at p. 467; see also Code Civ. Proc. § 437c(c).

B.

Requests for
Judicial Notice

1.

Plaintiff's
Request for Judicial Notice (“PRJN”)

Pursuant

to Evidence Code §§ 452(c), (d), (h) and 453, the City requests the Court take judicial notice of the following:

(1)

Articles of Organization of VRPO
Capital, LLC, filed with the California Secretary of State on August 25, 2021
(PRJN, Exh. 1);

(2)

Statement of Information of VRPO
Capital, LLC, filed with the California Secretary of State on September 3, 2021
(PRJN, Exh. 2);

(3)

Grant Deed by which VRPO Capital,
LLC acquired title to the real property located at 1228 East Compton Boulevard,
Compton, California 90221, recorded with the Los Angeles County Recorder's
Office on April 15, 2022 (PRJN, Exh. 3);

(4)

Complaint for Unlawful Detainer

filed by VRPO against John Wexler on April 4, 2023, including the attached Three-Day Notice to Quit served on John Wexler dated December 3, 2022 (Los Angeles Superior Court (“LASC”) Case No. 23CMUD00470(the “Wexler UD”)) (PRJN, Exh. 14);

(5)

Default entered against John Wexler
in the Wexler UD (PRJN, Exh. 15); and

(6)

Dismissal of the Wexler UD (PRJN,
Exh. 17).

The Court may take judicial notice
of the official acts of any state, county, or federal legislative, executive,
or judicial department as well as records of any court of this state. (Evid.
Code § 452(c), (h).) Judicial notice may
also be taken of “[f]acts and propositions that are not reasonably subject to
dispute and are capable of immediate and accurate determination by resort to
sources of reasonably indisputable accuracy.” (Cal. Evid. Code § 452(h); see,
e.g., *McElroy v. Chase Manhattan Mortg. Co.* (2005) 134 Cal.App.4th 388,
394 (taking judicial notice of the “Notice of Default and Election to Sell
under Deed of Trust” recorded in the Orange County official records); *Evans
v. Cal. Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 549, overruled on
other grounds by *Black Sky Capital, LLC v. Cobb* (2019) 7 Cal.5th 156
 (“The court may take judicial notice of recorded deeds”).)

Courts must usually only take
judicial notice of the existence of documents, rather than the facts recited
within the documents. (*Fremont Indemnity Co. v. Fremont Gen. Corp.*
(2007) 148 Cal.App.4th 97, 113.) However, for acts of public officials or
public records, the facts within such records can be judicially noticed subject
to certain restrictions. (Evid. Code § 452(c); see also *Jenkins v. JP Morgan
Chase Bank, N.A.* (2013) 216 Cal.App.4th 497, 536 (disapproved on other
grounds by *Yvanova v. New Century Mortg. Corp.* (2016) 62 Cal.App.4th
91).) Courts may not judicially notice hearsay statements unless an exception
applies, like the exception for statements in public records and those made by
public officials. (*Dominguez v. Bonta* (2022) 87 Cal.App.5th 389, 400;

Evid. Code §§ 1271, 1280.)

Deeds and other property documents

officially recorded by the government or a public official of the government are subject to these same distinctions. (Bethman v. City of Ukiah (1989) 216 Cal.App.3d 1395, 1399, fn. 4; see also Julian Volunteer Fire Co. Assn. v. Julian-Cuyamaca Fire Protection Dist. (2021) 62 Cal.App.5th 583, 598-599.) However, in addition to facts like names and dates, the legal effect of a deed can also be judicially noticed. (Kalnoki v. First American Trustee Servicing Solutions, LLC (2017) 8 Cal.App.5th 23, 37.) For example, language such as “the undersigned hereby grants, assigns and transfers. . .” has been held to be judicially noticeable as it indicates that the deed legally transferred property. (Poseidon Development, Inc. v. Woodland Lane Estates, LLC (2007) 152 Cal.App.4th 1106, 1118 as modified (July 24, 2007) .) But there are limits to what legal language can be judicially noticed in deeds when the fact for which judicial notice has been requested is reasonably subject to dispute in the case. (Herrera v. Deutsche Bank National Trust Co. (2011) 196 Cal.App.4th 1366, 1375, as modified (June 28, 2011).)

Each of the

documents of which the City requests judicial notice be taken are either records evidencing an official act of California's executive branch, officially recorded documents, or records of the Los Angeles Superior Court. Accordingly, each is a document of which the Court may take judicial notice, subject to the restrictions noted above. In accordance with the above, Plaintiff's Request for Judicial Notice is GRANTED in its entirety; the Court will take judicial notice the City's exhibits numbered 1, 2, 3, 14, 15 and 17.

2. Defendant's Request for Judicial Notice (“DRJN”)

VRPO requests the Court take
judicial notice of the following:

(1)

Declaration

of Anthony Ward filed on September 30, 2024; and

(2)

Plaintiffs

Factual Summary of Evidence in Support of Request for Court Judgment filed on September 30, 2024 (the "September 30 Factual Summary").

Rule

of Court 3.1113 requires that any request for judicial notice must comply with rule 3.1306(c.) (Cal. R. Ct., Rule 3.1113(l).)

And Rule of Court 3.1306 requires that "[a] party requesting judicial notice of material under Evidence Code sections 452 or 453 must provide the court and each party with a copy of the material. If the material is part of a file in the court in which the matter is being heard, the party must [] [s]pecify in writing the part of the court file sought to be judicially noticed." (Cal. R. Ct., Rule 3.1306(c).) VRPO fails to properly identify the documents that are the subject of its Request for Judicial Notice by stating the case name and number where the documents might be located. Upon review of the record in this matter, however, the Court identifies documents fitting VRPO's descriptions in the record in this matter and proceeds accordingly. [2]

Although

VRPO fails to state any authority for its requests (see Evid. Code §450 mandating that "[j]udicial notice may not be taken of any matter unless authorized or required by law"), the Court proceeds understanding that, because the documents are Court records, VRPO requests the Court take judicial notice pursuant to Evidence Code § 452(d.).

As

is noted above, pursuant to Evidence Code § 452, the Court may take judicial notice of its own records. (See Evid. Code § 452(d)(Permitting judicial notice of "[r]ecords of (1) any court of this state or (2) any court of record of the United States or of any state of the United States").) However, the Court may not take judicial notice of allegations in declarations or affidavits, because those matters are reasonably subject to dispute and require formal proof. (See *Oh v. Teachers Ins. & Annuity Ass'n of Am.* (2020) 53 Cal.App.5th 71, 80-81 (Judge may take judicial notice that a declaration exists, but not of the contents).) This prohibition applies to a party's declaration. (*Big Valley Bank of Pomo Indians v. Superior Court* (2005) 133 Cal.App.4th 1185, 1192-1193.) Furthermore, the truth of statements may only be accepted when made by a party, but not those of third parties or an opponent. (*C.R. v. Tenet Healthcare Corp.* (2009) 1169 Cal.App.4th 1094, 1103.)

In

accordance with the above, the Court GRANTS VRPO's Request for Judicial Notice subject to the following: (1) the Court takes judicial notice of the September 30, 2024 Declaration of Anthony Ward for its existence only; the court does not take judicial notice of the truth of any of the matters stated therein; and (2) the Court takes judicial notice of the September 30 Factual Summary for its existence and only to the extent that any of the statements therein might constitute an admission.

C.

Evidentiary

Objections

1.

VRPO's

Evidentiary Objections

Pursuant

to Rule of Court 3.1354:

Objections to specific evidence must be referenced by the objection number in the right column of a separate statement in opposition or reply to a motion, but the objections must not be restated or reargued in the separate statement. Each written objection must be numbered consecutively and must

(1) Identify

the name of the document in which the specific material objected to is located;

(2) State

the exhibit, title, page, and line number of the material objected to;

(3) Quote or

set forth the objectionable statement or material; and

(4) State

the grounds for each objection to that statement or material.

(Cal.

R. Ct., Rule 3.1354(b).)

VRPO

submits several objections to Plaintiff's evidence offered in support of its MSA.

However, VRPO's objections do not: (1) identify the name of the document in which the specific material objected to is located; or (2) state the exhibit, title, page, and line number of the material objected to. A party that fails to object in the manner required by the Rules of Court waives its objections to the evidence. (Code Civ. Proc. § 437c(b)(5); *Superior Dispatch, Inc. v. Insurance Corp. of New York* (2010) 181 Cal.App.4th 175, 192-193.)

Because VRPO

has failed to comply with the Rules of Court, the Court deems VRPO's evidentiary objections waived.

D.

Material

Facts

1.

VRPO's

Disputes

At the outset, the Court notes that

VRPO presents what it contends are various "disputes" to the City's asserted material facts but, generally: (1) fails to reference to the exhibit, title, page, and line numbers where facts giving rise to any dispute arise (see, e.g., UMF # 3, 15 (citing to "Declaration of David L. Prince ¶" without reference to any specific paragraph; see also UMF # 15 (citing to "Request for Judicial Notice" without any further specification)); (2) presents objections within its Separate Statement rather than facts evidencing a dispute (see, e.g., UMF ## 13, 14 (setting forth objections); (3) relies upon documents which provide no evidentiary support (see, e.g., UMF # 3 (citing to the declaration of Anthony Ward ("Ward"))); and (4) fails to specify whether certain material facts are unequivocally disputed (see, e.g., UMF ## 6, 7, 11-13).)

VRPO's failure to

reference any exhibit, title, page, and line

numbers where the Court might locate its evidence purported to raise triable issues of material fact is in violation of Rule of Court 3.1354, which requires that "[c]itation to the evidence in support of the position that a fact is controverted must include reference to the exhibit, title, page, and line

numbers.” (Cal. R. Ct., Rule 3.1354(f)(2).)

The Court is not required to search for evidence amongst a party’s papers. (Collins v. Hertz Corp. (2006) 144 Cal.App.4th 64, 75.)[3]

VRPO’s presentation of objections within its Separate

Statement is also in violation of Rule of Court 3.1354. As is noted above, evidentiary objections must be made in accordance with Rule of Court 3.1354(b) or the objections are waived. Additionally, “objections must not be restated or reargued in the separate statement.” (Cal. R. Ct., Rule 3.1354(b).) VRPO’s objections asserted within its Separate Statement are deemed waived.

VRPO’s reliance

upon and citation to Ward’s declaration is problematic in two respects. First, Ward’s September 30, 2024 declaration was judicially noticed for its existence only because Ward is not a party to this matter nor is he an authorized representative of a party to this matter. Accordingly, any reliance upon Ward’s September 30, 2024 declaration to evidence a triable issue of material fact is misplaced. A second problem arises in that Ward has also submitted a declaration in support of the City’s MSA but VRPO’s reference does not specify which declaration is referenced. (See, e.g., UMF # 3 (Citing to the undated “Declaration of Anthony Ward ¶ 10”).) Because Ward’s September 30, 2024 declaration is judicially noticed for its existence only, the Court construes VRPO’s references to the “Declaration of Anthony Ward” in its Separate Statement to refer to Ward’s declaration filed in support of the City’s MSA.

Finally, VRPO’s failure to specify whether it disputes certain material facts (instead presenting only improper objections as discussed above) is in violation of both the Code of Civil Procedure and the Rules of Court. Code of Civil Procedure § 437c(b)(3) requires VRPO to “respond[] to each of the material facts contended by the moving party to be undisputed, indicating if the opposing party agrees or disagrees that those facts are undisputed.” And Rule of Court 3.1350 requires that VRPO’s “response must unequivocally state whether that fact is ‘disputed’ or ‘undisputed.’” (Cal. R. Ct., Rule 3.1350(f)(2).) Where VRPO has failed to unequivocally indicate a dispute, the Court determines such material facts to be undisputed.

As a result of the above, VRPO

presents little, if any, evidence sufficient to create a dispute as to the City's proffered material facts. With the foregoing in mind, the Court sets forth the undisputed material facts as follows:

2.

The

Undisputed Material Facts ("UMF") and VRPO's Additional Undisputed Material Facts ("AUMF")

i.

The

Property, its Ownership, and Wexler's Lease of the Property

VRPO owns the real property located

at 1228 East Compton Blvd., Compton, CA 90221 (the "Property"), having purchased it on March 30, 2022 and recorded that purchase on April 15, 2022.

(UMF ## 1, 2.) As owner of the Property,

VRPO had management and control over the Property from at least April 15, 2022 through July 26, 2023. (Id., # 3.)[4] O'Loughlin was owner and manager of VRPO from March 30, 2022 to July 26, 2023. (Id., # 4.) VRPO is a private entity and does not have police powers. (AUMF # 200.)

VRPO and Wexler entered into a lease

dated April 14, 2022, with the tenancy commencing on May 1, 2022. (UMF # 5.) The lease between VRPO and Wexler states that the "[p]arties agree the use of the Premises shall be as a use acceptable to the City of Compton and state for permits and any business licenses that may be needed for their business operation." (AUMF # 201.)

ii.

The Activities at the Property

The City of Compton does not: (1)

permit or license any marijuana business; or (2) issue certificates of occupancy for marijuana dispensaries. (UMF ## 6-7.)

On June 9, 2022, deputies from the

Compton Sheriff's Station served a search warrant at the Property and determined that it was operating illegally as a marijuana dispensary under the

name "The Gas Station." (Id., # 8.) Between June 17, 2022 and July 26, 2023, Compton Code Enforcement ("CCE") inspected the Property regularly and found the unlicensed marijuana dispensary open and operating without a certificate of occupancy. (Id., # 9.)

CCE served VRPO with Notices of Violation on June 20, 2022 and August 9, 2022, each citing the absence of a certificate of occupancy and prohibited marijuana activity. (Id. # 10.) On August 31, 2022, CCE issued a formal Cease-and-Desist Order expressly advising that no business could operate at the Property without a business license and a certificate of occupancy. (Ibid.) CCE also issue 20 administrative citations to VRPO and O'Loughlin from June 20, 2022 through July 25, 2023. (Ibid.)

An unlicensed marijuana dispensary operated on the Property from May 1, 2022 through July 26, 2023. (Id., # 11.) No state or municipal license and no certificate of occupancy were issued for the operation of a marijuana dispensary from May 1, 2022 through July 26, 2023. (Id., ## 12-13.) Unlicensed marijuana operations affect the entire community as they attract criminal activity, encourage consumption of uncontrolled supply of marijuana, and violate building and safety codes. (Id., # 14.)

iii.

VRPO's Actions in Response to the Activity at the Property

VRPO failed to abate the unlicensed dispensary that operated at the Property from at least May 1, 2022 to July 26, 2023. (Id., # 15.) VRPO collected rent from the tenant at the property from at least May 2022 to November 2022, totaling at least \$35,000.00. (Id., # 16.)

On September 19, 2022 VRPO sent a letter to the City advising that it would be issuing a 3-day notice to vacate and taking legal action to remedy the unlawful dispensary operating at the Property. (Id., # 17.)

VRPO filed a 3-day notice to quit on Wexler on December 3, 2022 and hired an attorney to file an unlawful detainer

against Wexler on April 24, 2023. (Id., ## 18, 19; AUMF # 202.)

Wexler was defaulted on June 9, 2023. (UMF # 20.) Instead of pursuing the eviction via its then-pending unlawful detainer, VRPO signed a termination agreement with Wexler on July 26, 2023 terminating Wexler's tenancy on the same date at 5 PM. (Id., # 21.)

E.

Discussion

The City moves for summary adjudication, arguing that no triable issues of material fact exist as to the First, Second, Third, Fourth, and Sixth Causes of Action asserted in the FAC.

1.

The September 30 Factual Summary

VRPO contends that the September 30 Factual Summary presented in support of the City's request for entry of judgment against Defendant The Gas Station precludes summary adjudication because "the City stated to this Court that the property owner would not be liable for any of the illegal operations and advised this Court that the property owner (Defendant) was to be dismissed." (Opp., p. 3:6-8.) VRPO argues that now, "[n]early two years later, the City takes a completely diametrically opposed view and seeks to recover penalties from Defendant." (Id., p. 3:8-10.)

The Court does not find this argument persuasive. First, in its argument VRPO fails to cite any specific portion of the September 30 Factual Summary where any such claimed representation is made, leading the Court to examine the entirety of the document on a hunt for any such representation/admission. Nowhere in the September 30 Factual Summary has the Court found the statements VRPO alleges were made.

More importantly, VRPO was not named as a Defendant in this matter until September 19, 2025, nearly a full year after the September 30, 2024 Factual Summary, when VRPO was substituted in as "Doe 4." (See Amendment to Complaint (Fictitious/Incorrect Name)), filed 9/19/25.) And the City's 2024 Factual Summary identifies the owner of the Property as Defendant Ernesto Devera. VRPO provides no logical explanation how any statement that the "owner" would not be liable (if such a statement had been

made) operates to shield it from entry of judgment when (1) it was not a part to the litigation when the alleged statement was made; and (2) the “owner” at the time the statement was allegedly made was identified as a different party.

2.

There Are No Triable Issues of Material Fact as to Plaintiff’s

First Cause of Action for Narcotics Abatement

“Every building or place used for the purpose of unlawfully selling, serving, storing, keeping, manufacturing, or giving away any controlled substance, precursor, or analog specified in this division, and every building or place wherein or upon which those acts take place, is a nuisance which shall be enjoined, abated, and prevented, and for which damages may be recovered, whether it is a public or private nuisance.” (Health & Saf. Code § 11570.)

“Liability

attaches to a possessor of land who ‘knows or has reason to that the activity is being carried on and that it is causing or will involve an unreasonable risk of causing the nuisance, and... he consents to the activity or fails to exercise reasonable care to prevent the nuisance.’” (People v. Freetown Holdings Co. (2024) 100 Cal.App.5th 1195, 1208 (emphasis in original).) Actual knowledge of the person responsible is not required. (Id., at p. 1212 (“This ‘reason to know’ standard is recklessness, not knowledge”).) Further, if “a building or other property is so used as to make it a nuisance under the statute, the nuisance may be abated [] notwithstanding that the owner had no knowledge that it was used for the unlawful purpose constituting a nuisance.” (People ex re Bradford v. Barbieri (1917) 33 Cal. App. 770, 779.) “A nuisance and liability therefore may exist without negligence.” (Sturges v. Charles L. Harney, Inc. (1958) 165 Cal. App.2d 306, 318.)

Marijuana is a controlled substance pursuant to Health & Safety Code § 11054(d)(13) which may be prescribed for medical reasons or may be sold by pharmacies to medical professionals. (Id., §§ 11210, 11250-11251.) Marijuana may be commercially sold to consumers, but a license is required for all commercial marijuana activity. (Bus. & Prof. Code § 26053.)

Plaintiff presents evidence that the City of Compton does not license any marijuana business or issue certificates of occupancy for

marijuana dispensaries. (UMF ## 6, 7.) Plaintiff

further presents evidence that an unlawful marijuana dispensary operated on the Property from at least May 1, 2022 through July 26, 2023, that VRPO owned and had management and control of the Property at all relevant times, and that VRPO rented the Property to the dispensary. (Id., ## 1-3, 5, 11, 26.)[5] As VRPO received multiple citations for the operation of an unlicensed marijuana dispensary on the Property between June 17, 2022 and July 26, 2023, VRPO knew or should have known that the dispensary was operating on the Property between those times. (Id., ## 9, 10.) Although VRPO knew or should have known of the unlicensed activity since at least June 17, 2022, it did not take action until September 19, 2022 when its attorney sent a letter to the City representing that it would be issuing a notice to vacate and did not abate until July 26, 2023. (Id., ## 15, 17.) The undisputed material facts therefore establish that VRPO either consented to the operation of an unlicensed marijuana dispensary on the Property for the period between May 1, 2022 through July 26, 2023 in violation of Business & Professions Code §§ 26000, et seq. or failed to exercise reasonable care to prevent such operation. VRPO's use of the Property therefore constituted a nuisance under Health & Safety Code § 15700. Plaintiff has established that there are no triable issues of material fact as to its First Cause of Action and the burden shifts to VRPO.

For its

part, VRPO does not substantively dispute Plaintiff's evidence and fails to produce substantially responsive evidence.

VRPO thus fails to successfully establish a triable issue as to any of the City's material facts via the presentation of conflicting evidence but instead argues the existence of a triable issue of material fact via its application of the undisputed factual evidence to the legal standards.

i.

Lew v. Superior Court

– The "Reasonableness" Element

Citing

to Lew v. Superior Court (1993) 20 Cal.App.4th 866 ("Lew") and People v. Freetown Holdings Co. (2024) 100 Cal.App.5th 1195 ("Freetown"), VRPO contends that it cannot be held liable because a triable issue of material fact exists as to whether it acted reasonably.

(See Lew, supra, 20 Cal.App.4th at pp. 874-875 (Setting forth three elements: (1) a third-party use of a defendant's property for illegal drug sales; (2) that the defendant knew or should have known of the use; and

(3) that the defendant failed to do what a reasonable person under similar circumstances would have done).)

VRPO argues that, upon learning of the activities at the property, a reasonable person would have commenced eviction proceedings – which it undisputably did. (See UMF ## 17-19; Opp., p. 5:17-20 (“A reasonable person would commence eviction [and] sought the eviction process through until the use terminated”).) Accordingly, VRPO argues, “a genuine issue of material fact exists as to whether Defendant was ‘a reasonable person under similar circumstances relative to the problem caused by the tenant.’” (Opp., p. 5:22-26.)

The City argues in opposition that the timeline establishes lack of reasonableness because it shows that: (1) the first Notice of Violation was served to VRPO on June 20, 2022 (UMF # 10); (2) VRPO kept collecting rent through November 2022 despite have received a second Notice, a Cease-and-Desist Order and 20 administrative citations (UMF ## 10, 16); (3) VRPO did not file the Wexler UD until April 24, 2023 (UMF #20); and (4) after Wexler was defaulted on June 9, 2023 VRPO negotiated a private lease termination rather than pursue and complete termination of the lease through the court process (UMF ## 19, 20). (Reply, pp. 8:27-9:5.)

Here, the Court finds VRPO’s argument unpersuasive. Whether VRPO’s conduct met the standard set forth in *Lew* may be decided on a motion for summary adjudication only if the undisputed facts permit no room for a reasonable difference of opinion, meaning that the circumstances permit no reasonable doubt or differing conclusions to be rationally drawn from the evidence presented. (See *Regents of University of California v. Superior Court* (2018) 29 Cal.App.5th 890, 912; *Unigard Ins. Group. V. O’Flaherty & Belgum* (1995) 38 Cal.App.4th 1229, 1237.) The evidence presented establishes that VRPO was on notice of its tenant’s illegal activities at the Property since at least June 20, 2022 when the initial Notice of Violation was issued from CCE. (UMF # 10.) However, it wasn’t until December 3, 2022, nearly 5 months later, that VRPO served Wexler a 3-Day Notice to Quit. (Id., # 18.)

And it was another four months after that, on April 4, 2023, that VRPO filed the Wexler UD. (Id., # 19.)

VRPO presents no admissible evidence substantiating or explaining the cumulative ten-month delay between receiving notice of the illegal activity at the property and instituting suit to evict its tenant. But the City presents evidence establishing that, during that period, VRPO continued to receive notices that the illegal

activity continued (including an August 31, 2022 Cease-and Desist Order noting that the tenant had no business license or certificate of occupancy and over 20 administrative citations) and yet continued to collect over \$35,000.00 in rent. (UMF ## 10, 16.) The circumstances presented are therefore that VRPO was on notice that its tenant was conducting an illegal business without a business license or a certificate of occupancy, all in violation of its lease (see AUMF # 201), but waited many months prior to commencing eviction proceedings, all while collecting over \$35,000.00 in rent from said tenant. Given the undisputed facts, the only rational conclusion is that VRPO acted unreasonably. VRPO has therefore failed to establish the existence of a triable issue of material fact as to Plaintiff's First Cause of Action.

Accordingly, the City's Motion for Summary Adjudication as to its First Cause of Action for Narcotics Abatement is GRANTED.

3.

There Are No Triable Issues of Material Fact as to Plaintiff's Second Cause of Action for Public Nuisance

A nuisance is defined as "[a]nything which is injurious to health, including, but not limited to, the illegal sale of controlled substances, or is indecent or offensive to the senses, or an obstruction to the free use of property, so as to interfere with the comfortable enjoyment of life or property, or unlawfully obstructs the free passage or use, in the customary manner, of any navigable lake, or river, bay, stream, canal, or basin, or any public park, square, street, or highway." (Civ. Code § 3479.) And a public nuisance is a nuisance that simultaneously affects a large group of individuals or an entire community. (Civ. Code § 3480.) A government entity may sue to abate a public nuisance. (Code Civ. Proc. § 731.)

As previously set forth, the City's evidence shows that VRPO permitted an unlicensed marijuana dispensary to operate on the Property. As is noted above, the illegal sale of controlled substances, including marijuana, constitutes a nuisance under Civil Code § 3479. (See also Health & Safety Code § 11570 ("[e]very building or place used for the purpose of unlawfully selling, storing, keeping, manufacturing, or giving away a controlled substance ... is a nuisance which

shall be enjoined, abated, and prevented . . . whether it is a public or private nuisance").) VRPO's conduct, therefore, constituted a nuisance. Furthermore, local municipalities have the authority to regulate land use and cannabis activities within their jurisdictions. (People ex rel. Feuer v. FXS Management, Inc. (2016) 2 Cal.App.5th 1154, 1160; Health & Safety Code § 11362.83.) The City of Compton has exercised that authority and does not permit or license any marijuana business. (UMF # 27; Compton Municipal Code ("CMC") Ch. 9-24.3(a)-(d).) Under the doctrine of nuisance per se, when a legislative body expressly declares an activity or condition to be a nuisance, its mere existence establishes a nuisance, and no further inquiry into irreparable injury or harm is required. (Urgent Care Medical Services v. City of Pasadena (2018) 21 Cal. App. 5th 1086, 1094.)

And VRPO's acts and omissions also affected a large number of people by permitting the unlicensed commercial sale of a controlled substance to the community, attracting criminal activity, encouraging consumption of uncontrolled supply of marijuana, and violating building and safety codes, all which created a dangerous condition to public health and safety. (UMF # 35.) Plaintiff has therefore established that there are no triable issues of material fact as to whether VRPO created a public nuisance, shifting the burden to VRPO.

VRPO fails to produce substantively responsive evidence and thus fails to establish the existence of any triable issue of material fact as to the City's Second Cause of Action.

Accordingly, the City's Motion for Summary Adjudication is GRANTED as to the Second Cause of Action for Public Nuisance.

4.

There Are No Triable Issues of Material Fact as to Plaintiff's Third Cause of Action for Violation of CMC Ch. 9-24.3

The Compton Municipal Code expressly prohibits commercial marijuana activity within the City of Compton. Per CMC Chapter 9-24.3, "[a] property owner shall not rent, lease or otherwise permit any business that engages in commercial marijuana activity to occupy real property in the City. A property owner shall not allow any person or business to establish, operate, maintain, conduct, or engage in commercial marijuana activity on any real

property owned or controlled by that property owner that is located in the City.” (CMC, Ch. 9-24.3(b).)

As previously established, VRPO permitted and allowed an unlicensed commercial marijuana dispensary to operate on its Property. As VRPO owned the Property and rented it to the dispensary (UMF ## 1-3, 26; see also fn. 5), its conduct violated CMC Chapter 9-24.3(b). The City has met its burden with regard to its Third Cause of Action, shifting the burden to VRPO.

In opposition, VRPO takes issues with the City's characterization of its Third Cause of Action as a “strict liability offense” such that any demonstration of knowledge or intent is unnecessary and the City's citations to *People v. Wheeler* (2023) 95 Cal.App.5th Supp 1 (“Wheeler”) and *People v. Gonzalez* (2020) 53 Cal.App.5th Supp 1 (“Gonzalez”) in support of that characterization. VRPO argues that both *Wheeler* and *Gonzalez* “are in the arena of misdemeanor criminal prosecution where the courts found that punishment for the violation are ‘penalties are not substantial’” [sic] and both are inapplicable here given that this is not a misdemeanor matter and given the very substantial over \$3 Million in damages sought by the City. (See Opp., p. 6:14-7:12.) The Court finds no need to wade into whether Plaintiff's Third Cause of Action is indeed a strict liability offense. As is noted above, the City has met its burden setting forth no triable issue of material fact as to its Third Cause of Action. The City has established that VRPO knew or should have known of the activities at its Property given the over 20 administrative citations, the Cease-and-Desist Order and the multiple Notices of Violation issued to it between June 20, 2022 and July 25, 2023. (UMF # 10.) Aside from a dispute as to whether the City's Third Cause of Action may be characterized as strict liability, VRPO offers no argument or evidence sufficient to create a triable issue of material fact as to whether it knew or should have known of the activities at the Property. Strict liability or not, therefore, VRPO has failed to establish the existence of a triable issue of material fact regarding violation of CMC 9-24.3.

Plaintiff Motion for Summary Adjudication as to the Third Cause of Action for Violation of Compton Municipal Code Chapter 9-24.3 is GRANTED.

5.

There are no Triable Issues of Material Fact as to Plaintiff's Fourth Cause of Action for Violation of CMC Ch. 30-33

CMC Chapter 30-33 provides that “[i]t shall be unlawful for any person to occupy any building, portion of a building, property or portion of property for any commercial, professional, industrial, church, public assembly, governmental or other type of use, except dwelling units, unless a certificate of occupancy shall have been issued by the Planning Department.” (CMC, Ch. 30-33, a.)

The City presents evidence that the marijuana dispensary that operated out of the Property was unlicensed and lacked a certificate of occupancy. (UMF ## 11, 12, 13.) The City has met its burden, shifting the burden to VRPO.

In opposition, VRPO contends that CMC Ch. 30-33 is inapplicable because it did not “occupy” the Property and, because “[n]o evidence whatsoever” has been presented by the City that VRPO occupied the Property (and, indeed, the accumulated evidence establishes that VRPO was not the actual occupant), it “was not in possession of the Property as required by CMC 30-33 and did not commit the offenses that could relate thereto by reason of lack of possession.” (Opp., pp. 7:20-8:13.)

“Occupied,” as defined in CMC Ch. 30-3, “[s]hall mean arranged, designed, built, altered, converted, rented, leased, or intended to be occupied.” (CMC, Ch. 30-3 (emphasis added).) As previously established, the undisputed evidence shows that VRPO, as the owner of the Property, “occupied” the Property within the meaning of CMC Ch. 30-33 by renting or leasing the Property to an unlicensed commercial cannabis dispensary. (UMF ## 1-3, 26; see also fn. 5.) VRPO’s argument as to the applicability of CMC Ch. 30-33 therefore does not suffice to establish the existence of a triable issue of material fact as to Plaintiff’s Fourth Cause of Action.

Accordingly, the Court GRANTS Plaintiff Motion for Summary Adjudication as to its Fourth Cause of Action for Violation of Compton Municipal Code Chapter 30-33.

6.

The City Has Not Met Its Initial Burden as to the Sixth Cause of Action for Violation of Business & Professions Code § 26038

Business & Professions Code §

26038 imposes civil penalties against persons engaging in and aiding and abetting in an unlicensed commercial cannabis activity. (Bus. & Prof. Code § 26038(a)(1)-(2)). Per the Business & Professions Code, liability is imposed against a person “who has management or control of a commercial property, or a commercial building, room, space, or enclosure, either as an owner, lessee, agent, employee, or mortgagee, who knowingly rents, leases, or makes available for use, with or without compensation, the commercial property, building, room, space, or enclosure for the purpose of the unlicensed commercial cultivation, manufacture, storage, sale, or distribution of cannabis.” (Bus. & Prof. Code § 26038(a)(3)(A).) Liability may only be imposed upon such a person if it is “demonstrated that the person had actual knowledge that the cannabis-related activity was for commercial purposes, required a license, and was unlicensed.” (Id., § 26038(a)(3)(B).)

The City’s undisputed material facts establish that VRPO: (1) is the owner of the Property (UMF # 1); (2) had management or control of the Property (Id., # 3); (3) leased the Property to the dispensary (UMF ## 1-3, 26; see also fn. 5); (4) knew or should have known of the unlicensed marijuana sales occurring at the property after it was leased to the dispensary (see UMF # 10); and (5) knew that its tenant was unlicensed (see id. (referencing Cease-and-Desist Order notifying VRPO that its tenant had no license)).

What the City’s undisputed material facts do not establish, however, is that VRPO leased the Property to its tenant “for the purpose of the unlicensed commercial cultivation, manufacture, storage, sale, or distribution of cannabis” or that VRPO “had actual knowledge that the cannabis-related activity was for commercial purposes.” Indeed, the material facts set forth by the City establish that the lease itself states the “use of the [Property] shall be as a use acceptable to the City of Compton and state for permits and any business licenses that may be needed for their business operation.” Accordingly, a triable issue of material fact remains as to whether VRPO had actual knowledge that its tenant’s intended use of the property was for commercial cannabis-related purposes and whether the lease of the Premises was for such purposes. (See Plaintiff’s Compendium of Evidence, Exh. 14, p. 7.)

The City has not met its initial burden as to its Sixth Cause of Action.

Accordingly, the burden does not shift to VRPO and the City's Motion for Summary Adjudication as to its Sixth Cause of Action is DENIED.

III. CONCLUSION

The City's Motion for Summary Adjudication is GRANTED IN PART. The City's motion is granted as to the First, Second, Third, and Fourth Causes of Action in the FAC.

The City's Motion is DENIED as to the Sixth Cause of Action in the FAC.

Plaintiff is ordered to prepare and file a proposed form of judgment in accordance with this ruling.

[1] As is correctly noted by the City in its Reply, VRPO's opposing paperwork is untimely, having been filed on August 31, 2026 when the due date for a timely Reply was August 28, 2026. (See Code Civ. Proc. § 437c(b)(2)(Any opposition to a motion for summary adjudication "shall be served and filed not less than 20 days preceding the noticed or continued date of hearing, unless the court for good cause orders otherwise").) Although untimely, in the interest of allowing a fully informed hearing the Court exercises its discretion to consider VRPO's Opposition. (See *Teselle v. McLoughlin* (2009) 173 Cal.App.4th 156, 170, fn. 2 (Abuse of discretion for judge to grant a defendant's motion for summary judgment because the plaintiff was 1 day late filing an opposing statement of undisputed facts).)

[2] On September 30, 2024, in conjunction with its request for entry of default, the City filed documents titled: (1) "Plaintiff's Factual Summary of Evidence in Support of Request for Court Judgment Against Defendant The Gas Station;" and (2) "Declaration of Anthony Ward in Support of Request for Court Judgment Against Defendant the Gas Station." (See Docket, 9/30/24.) The Court proceeds with the understanding that the aforementioned documents are those referenced in VRPO's Request for Judicial Notice.

[3] While VRPO's failure to identify any paragraph when citing to the declaration filed by its attorney David L.

Prince ("Prince") also violates Rule of Court 3.1354, Prince's declaration consists of four paragraphs, one of which identifies Prince and the remainder of which appear aimed at identifying VRPO and O'Loughlin as a private company and individual both without any "police powers." (See, generally, Prince Decl.) Although improperly cited throughout VRPO's Separate Statement, the Court exercises its discretion to review and incorporates the Prince declaration where its contents might be sufficient to create a triable issue of material fact.

[4] VRPO disputes this fact, however its dispute consists solely of a citation to an unidentified paragraph of the declaration of defense attorney David Prince ("Prince") and a citation to the declaration of Anthony Ward. As is noted above, Ward's declaration is judicially noticed for its existence only; Ward is not a party to this matter or an authorized representative of a party to this matter. Prince's declaration, while not properly cited, consists of four paragraphs, none of which provide evidence disputing UMF # 3.

[5] The undisputed material facts are that VRPO rented the property to Wexler commencing May 1, 2022 through the stipulated termination date of July 26, 2023. (UMF ## 5, 21.) An unlicensed marijuana dispensary operated at the Property for the same period of time. (Id., # 11.) The connection between Wexler and the dispensary, resulting in the Court's statement above that "VRPO rented the Property to the dispensary," is a reasonable inference given the aforementioned undisputed material facts. (See Code Civ. Proc. § 437c(c); Weiss v. People ex rel Dep't of Transp. (2020) 9 Cal.5th 840, 864 (In deciding a motion for summary judgment/adjudication Court must consider all inferences that are reasonably deducible from the evidence).) The inference drawn is further buttressed by the Wexler UD, filed by VRPO against Wexler and premised upon the unlawful operation of a marijuana dispensary at the Property. (See PRJN, Exh. 14.)